Judicial Procedures and Instructions

(last modified 6/3/26)

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A. Communications with the Judicial Office

PLEASE REVIEW ALL PRICEDURES AND ADMINISTRATIVE ORDER 2021-05
(AVAILABLE AT WWW.CIRCUIT19.ORG)
BEFORE CONTACTING THE JUDGE'S OFFICE.

- **Method of Communication:** All communications to the judicial office must be submitted by e-mail to the judicial assistant at whiteh@circuit19.org. The subject line must contain the case number, case name, and relevant matter, for example: *2024 CA 001234 SC – Doe v. Doe - 2 Hour Hearing Requested*.

- ***Ex-parte* Communications:** All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering *ex parte* communications outside the presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an *ex parte* communication is authorized by law.

- **Unsolicited Communications:** Please do not contact the judge's office expecting to communicate with Judge Cox. Do not ask the judicial assistant or other court personnel to communicate any message to the judge. The Court's staff is not permitted to relay ex-parte information to the judge. The Code of Judicial Conduct forbids judges from discussing court cases or legal issues with the parties outside of the court. Judges are not permitted to consider any argument or material not properly filed in the case as authorized by law and the rules of court.The judicial assistant cannot provde legal advice.

- **E-Filing Portal Contact Information:** All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. See Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

B. Hearing Procedures

- **Court Schedule:** The online calendar is the most accurate representation of the Court's schedule. Typically the first and second weeks of the month will be motion weeks, followed by a two week trial docket. Do not assume that each month follows the same pattern and review the online calendar.

- **Scheduling Hearings:** All hearings shall be scheduled using the online calendar: https://slccjis.stlucieco.gov/attorney_calendar/. Motions must be filed prior to scheduling a hearing. If you need more than thirty (30) minutes, email a request to whiteh@circuit19.org. You must give the opposing parties notice of a hearing at least five (5) business days prior to the hearing date unless otherwise agreed by the parties. Do not schedule multiple hearing slots on the same docket. Hearings must be scheduled on the appropriate docket, or the hearing will be stricken.

  •UNIFORM MOTION CALENDAR (UMC): UMC dockets are limited to non-evidentiary, 5-10-minute-long hearings. The UMC dockets are set for 30 minute increments with a max of 4 cases per docket. The types of motions suitable for a UMC docket include simple motions (motions to strike affirmative defenses, motion to amend, motions to withdraw, etc.) Hearings are limited to the time allotted when scheduling per case, not per motion. ALL UMC HEARINGS WILL BE HELD REMOTELY VIA ZOOM VIDEOCONFERENCING.

•SPECIAL SET (ZOOM): Hearings longer than 10 minutes; motions not appropriate for UMC; remote hearings via Zoom.

•SPECIAL SET (IN PERSON): All evidentiary hearings

•RESIDENTIAL FORECLOSURE: Residential foreclosure matters must be scheduled on a Residential Foreclosure docket. If a residential foreclosure is scheduled on any other docket, it will be removed and you will need to reschedule. See "Residential Foreclosure" section below for more information. IN PERSON AND REMOTE/ZOOM DOCKETS AVAILABLE. SEE RULE 2.530.

- **Notice of Hearing & Service:** E-service is mandatory and service of process for all documents shall be made via the clerk of court e-portal. If a self-represented party does not have an email service address, that parties' physical service address shall be contained in any filed document, including but not limited to any motion, notice and any proposed order and the moving party SHALL BE RESPONSIBLE to serve such self-represented parties, including executed orders, via U.S. Mail, and shall immediately e-file a Certificate of Service on Self-Represented Party Compliance when completed. If scheduling a remote hearing, the Zoom Meeting ID must be included on the Notice of Hearing.

- **Submission Deadlines:** This is a paperless office. Ex parte motions/orders must be emailed to whiteh@circuit19.org with all parties included. All hearing materials must be emailed to whiteh@circuit19.org at least 5 BUSINESS DAYS prior to the hearing date. Motions, notices, memos, case law, etc. should be in PDF format. Highlighting pertinent sections and brevity is appreciated. Proposed orders/judgments must be in Microsoft Word format. FAILURE TO TIMELY SUBMIT PROPOSED ORDERS/JUDGMENTS IN WORD FORMAT PRIOR TO THE HEARING WILL RESULT IN THE HEARING BEING STRICKEN FROM THE DOCKET.

- **Cancelling Hearings:** Dockets are finalized by 2 p.m. the business day before the hearing. Therefore, all hearings must be cancelled/removed from the online calendar before 2 p.m. Notices of Cancellation must be immediately filed with the Clerk and emailed to whiteh@circuit19.org. IF YOU CANCEL A HEARING THAT YOU SCHEDULED ONLINE, YOU MUST CANCEL USING THE ONLINE CALENDAR. Filing a Notice of Cancellation does not remove from the online calendar. If a hearing is not removed from the online calendar, the scheduling attorney/party will be considered a "no show" and online scheduling privileges may be revoked as a result

- **Other Hearing Procedures:**
  MOTIONS TO DISMISS & MOTIONS FOR MORE DEFINITE STATEMENT: The Court will initially consider all non-dispositive Motions to Dismiss filed pursuant

to Rule 1.140(b) and Motions for More Definite Statement filed pursuant to Rule 1.140(e), without a hearing. Motions to Dismiss must strictly comply with the requirements of the Rule in that the grounds on which they are based, and the substantial matters of law intended to be argued shall be stated specifically and with particularity. Motions for More Definite Statement must strictly comply with the requirements of the Rule in that the motion must point out the defects complained of and the details desired. Either party may furnish a copy of the Motion to the Court/Judicial Assistant by email (whiteh@circuit19.org). The copy shall be accompanied by an order granting/denying the motion with email service addresses and letter or email evidencing copies to all counsel of record and pro se parties. If the Court determines that a hearing is necessary, the movant will be advised to schedule a hearing and file the appropriate notice. If a hearing is not required, an appropriate order will be entered. No case dispositive ruling will be made without a hearing.

ADDING MOTIONS TO A HEARING: Additional motions may not be "piggy backed" by cross-notice unless all parties agree to adding motion(s); any added motion must timely submit hearing material or the motion(s) will NOT be heard. No extra time will be given to a hearing for additional motion(s) without Court approval.
COURT REPORTERS: All evidentiary matters (both trials and hearings) should be reported by a court reporter. It is the moving party's responsibility to arrange to have a court reporter present, or to obtain stipulation from the non-moving party or the parties' intent to not have a court reporter present.
CERTIFICATE OF CONFERRAL: Pursuant to Rule 1.202, before filing a non-dispositive motion, movant must confer with opposing party in a good-faith effort to resolve the issues raised in the motion. Motions without the required Certificate of Conferral, *in the correct format*, may be stricken for non-compliance.

RULE 1.202. CONFERRAL PRIOR TO FILING MOTIONS
(b) Certificate of Conferral. At the *end of the motion and above the signature block*, the movant must include a certificate of conferral in substantially the following form:

"I certify that prior to filing this motion, I discussed the relief requested in this motion by [method of communication and date] with the opposing party and [the opposing party (agrees or disagrees) on the resolution of all or part of the motion] OR [the opposing party did not respond (describing with particularity all of April 1, 2025 Florida Rules of Civil Procedure 65 the efforts undertaken to accomplish dialogue with the opposing party prior to filing the motion)]."
OR
"I certify that conferral prior to filing is not required under rule 1.202."

POST-HEARING PROCEDURES: If counsel is asked to prepare an order, the order shall be drafted and circulated to all parties within 2 business days of the hearing, and must be submitted to the Court (whiteh@circuit1.org) in Word format within 7 days of the hearing. Counsel must advise the Court of any objection to the form of the proposed order upon submission.

C. Remote Appearance

- **Remote Appearance Procedure:** All non-evidentiary hearings shall be scheduled on a Remote Hearings (ZOOM) docket and noticed to be held via Zoom videoconferencing. Compliance with Rule 2.530(b)(2), Fla. R. Jud. Admin. is required. Testifying participants (parties and witnesses) MUST appear via Zoom with both audio and video unless they have a NOTARY PUBLIC with them to administer an oath.

- **Platform Used & Meeting ID:** The Court uses Zoom for all remote hearings. The Meeting ID is 616 815 4963.

- **Technology Needs:** Please visit the 19th Circuit's website for information regarding technology in the courtroom, and for Audio/Visual requests: https://www.circuit19.org/programs-services/court-programs/court-technology/courtroom-technology

D. Submission of Orders and Judgments

- **Format:** Motions, notices, memos, case law, etc. should be in PDF format. Highlighting pertinent sections and brevity is appreciated.Proposed Orders must be in Microsoft Word format.

- **Submission Method:** Motions/orders must be emailed to whiteh@circuit19.org with all parties included.

- **Deadline for Submissions:** All hearing materials must be emailed to whiteh@circuit19.org at least 5 BUSINESS DAYS prior to the hearing date. FAILURE TO TIMELY SUBMIT PROPOSED ORDERS/JUDGMENTS IN WORD FORMAT PRIOR TO THE HEARING WILL RESULT IN THE HEARING BEING STRICKEN FROM THE DOCKET

- **Other Procedures Relating to Submission of Orders and Judgments:**
  FORMATTING REQUIREMENTS: All proposed orders/judgments must describe the motion, in the caption, the subject and ruling of the Court, *i.e. "Order Granting Plaintiff's Motion for Partial Summary Judgment on Liability."* The proposed order shall reflect the date of the hearing and utilize the Supreme Court Case Numbering System (i.e. **31** 2024 CA 009999 - County Code, Year, Division, and Six Digit Number. The proposed order should reflect the date that it is entered in *Indian River County, Florida by CYNTHIA L. COX, Circuit Judge.*
  DISCOVERY MOTION AND MOTIONS TO COMPEL: These motions must comply with the Florida Rules of Civil Procedure, including but not limited to, a certification that the movant, in good faith, has conferred or attempted to confer with the person or party failing to make discovery in an effort to secure the information without Court action. See Rule 1.380(a)(2), Florida Rules of Civil

Procedure.

EX PARTE MOTIONS TO COMPEL: If a motion to compel discovery sets forth a complete failure to respond or object to discovery, the time for complying with the discovery request has lapsed and there has been no request for an extension of time, an ex parte order may be entered requiring compliance with the original discovery demand within ten (10) days of date of the order. The motion must include a certification that the movant has conferred or attempted to confer with the attorney or person failing to make discovery in good faith so as to obtain all the information without court action. Upon the filing of such motion, the moving party shall send the motion and proposed order in Word format via email (whiteh@circuit19.org) with all parties copied.

MOTIONS FOR REHEARING, RECONSIDERATION, NEW TRIAL, ETC.: Upon filing said motion under Rule 1.530, the moving party shall immediately email a copy to the Judge for review at whiteh@circuit19.org. The copy of the motion shall be accompanied by an order granting/denying the motion and a transmittal letter showing copies to all counsel and Pro Se litigants. If the moving party fails to comply, any party may furnish a copy of the motion and required documents to the Court. If the Court determines that a hearing is necessary, the movant will be given dates and times to coordinate with opposing counsel or pro se litigants. The movant will need to file the appropriate notices. Do not file the motion unless you can meet the legal standards for rehearing or reconsideration. Do not set a Motion for Rehearing or Motion for Reconsideration without first receiving permission from the Court.

WITHDRAWAL OR SUBSTITUTION OF COUNSEL: Compliance with Fla. R. Jud. Admin 2.505 is required. Written client consent must be filed, or a hearing must be held after proper notice to the client. The proposed Order must contain the client's address, email address and telephone number.

MOTIONS TO CONTINUE: Cases will not be continued by submitting an amended Case Management Plan and Order. Rule 1.460 will be strictly enforced and motions/orders missing the required information will not be considered.

E. Courtesy Copies

- **When Required:** Courtesy copies are required for all hearings.
- **Format:** Proposed Orders must be submitted in Microsoft Word format. All other materials may be in PDF format. We cannot accept filesharing links. All materials must be sent as an email attachment.
- **Submission Method:** Email to whiteh@circuit19.org.
- **Deadline for Submissions:** Hearing materials must be received at least five (5) business days prior to the hearing date.

F. Emergency and Other Urgent Matters

- **Requirements:** If an emergency situation arises, counsel may request that a hearing be set on short notice. The body of the motion must contain a detailed explanation of the circumstances constituting an emergency. The motion must be emailed to whiteh@circuit19.org as soon as e-filed.

- **Scheduling: T**he Court will review the motion and if deemed an emergency, will contact the parties with hearing times. Emergency Hearings will be via Zoom unless otherwise directed by the Court

G. Exhibits for Evidentiary Proceedings

- **Submission Method:** Exhibits must be emailed to white@circuit19.org as email attachments. The file names must be in compliance with the Exhibit Policy with Party identification, number, description (i.e. P 5 Photo of Stairs; D 7 Contract)

- **Format:** Exhibits may be submitted as email attachments in the following file formats: PDFs, JPG, PNG, and MP4.

- **Deadline for Submissions:** Exhibits must be emailed at least five (5) business days prior to the hearing/trial date.

- **Other Procedures Relating to Exhibits for Evidentiary Proceedings:**
  PRE-MARKING WITH CLERK: If counsel has questions regarding submitting exhibits for in person hearings or trials, please contact the Clerk of Courts/Civil Division. All exhibits are to be marked for identification by the clerk at least 48 hours prior to the start of hearing/trial. Exhibits which will be stipulated into evidence may be marked. Once exhibits are marked, either for identification or in evidence, they become the property of the Clerk of Court and may not be altered or removed from the courtroom without order of the Court. No exhibits are to be published or exhibited to the jury until admitted into evidence and authorized by the Court. Objections to exhibits not preserved in the pre-trial stipulation shall be deemed waived.
  TRIAL BRIEFS: Trial briefs should be submitted to Judge Cox's office no later than five (5) business days prior to the first day of trial. Paperless submission is preferred, with highlighting of pertinent sections.
  TRIAL NOTEBOOKS: If possible, trial notebooks should be submitted digitally. The Court prefers paperless submission of trial materials. Please email to whiteh@circuit19.org; multiple emails may be sent if there are file size limitations. If the trial notebook cannot be emailed, a USB disk drive is the next best alternative. If unable to submit in these formats, the Court will accept binders that are delivered at least 3 business days prior to the trial.
  JURY SELECTION PROCESS: After voir dire, the Court will first ask each side for any cause challenges. Upon completion of challenges for cause, the Court will move to pre-emptory challenges. The Court will start with the first juror and move sequentially as they are seated in the venire, alternating between counsel until a panel is chosen. Back striking during jury selection is always permitted. The

number of alternates will be determined by the type and length of trial. Each party will have one additional strike as to each alternate.

OPENING AND CLOSING: Only demonstrative aids or exhibits marked by the Clerk, agreed to by all counsel, or approved by the Court, may be used in opening or closing. The Court will discuss with counsel the time requirement of opening/closing and will expect a reasonable estimate be provided by counsel. Please note that opening statements will begin immediately after a jury is selected and sworn unless otherwise ordered by the Court.

EXHIBITS: Please see above section regarding Exhibits.

DEMONSTRATIVE AIDS: Any demonstrative aid that is to be used at the trial must be marked by the Clerk and exhibited to opposing counsel and the Court prior to the start of trial. The Court will hear argument of any counsel opposing the use of demonstrative aids prior to the start of trial. No aids are to be shown to the jury without prior approval.

EXPERTS: The Court will not accept or qualify a witness as an expert in front of the jury. Challenges to an expert's qualifications will be handled outside the presence of the jury. Experts are to be cautioned by the attorney who calls them of "in limine" rulings, and the effect of the Rule of Sequestration.

USE OF DEPOSITIONS: If depositions are to be used at trial in any manner (impeachment, as video testimony, etc.), you must make certain a hard copy is available for both the Court and for the witness being questioned.

OBJECTIONS: The Court will not allow speaking objections in front of the jury. When counsel rises to object, the legal basis of the objection only should be stated. If elaboration is necessary, the Court will call counsel up for a bench conference. Counsel shall not interrupt opposing counsel of witness's questions or answers with an objection unless the answer of question is patently objectionable. Once the Court has ruled, no further argument shall be permitted.

H. Pretrial Procedures and Conferences

- **Case Management Conference (CMC):** The Court may schedule certain cases for a Case Management Conference (CMC). Any case can submit a request for a CMC by filing a written motion setting forth the specific reasons why a CMC is needed. Cases on the complex track shall be set for CMCs in accoradance with the Rules of Civil Procedure.

I. Setting Case for Trial

- **Procedure:** Pursuant to Florida Supreme Court AOSC20-23, Amendment 12, all parties MUST comply with the 19th Circuit's Administrative Order 2021-05, by timely submitting an Agreed Case Management Plan and Order to whiteh@circuit19.org. Please ensure the proposed order is in Microsoft Word format and includes a service list with the names and service addresses of the parties who will receive a copy of the signed Order. A template of the order is available at the Court's webpage: https://www.circuit19.org/judges/cynthia-cox-l All cases must submit an Agreed Case Management Plan and Order within 30

days after service on the last defendant. Deadlines are established and enforced pursuant to such order. Submitting the agreed plan allows attorneys to choose their own deadlines and trial dates. After all attorneys sign the ACMPO, it must be emailed to the Court (whiteh@circuit19.org) to be approved, signed and e-filed. DO NOT FILE THE ACMPO WITHOUT A SIGNATURE FROM THE COURT. Failure to submit the ACMPO will result in the Court issuing its Order Requiring Filing of Mandatory Case Management Plan. Failure to comply with said order will result in sanctions which can include your case being dismissed or closed without further notice or order. Cases will automatically be set for trial during the e-docket month designated on the submitted and approved Case Management Plan and after considering the properly submitted E-Docket Call Form. Notices of Trial are not required, as trial dates are set by the Agreed Case Management Plan and Order.

A Notice of Non-Compliance shall be filed if the parties are unable to comply with the Case Management Plan and Order or an Order Requiring Filing of Mandatory Case Management Plan. The notice shall include the reasons the parties are unable to comply. The notice shall be filed in the court file and submitted to whiteh@circuit19.org for the Court's review.

- **Notice Period/ E-Docket Call Procedures:** There is no requirement to physically attend Docket Call. Instead, counsel with cases on each month's docket will complete the E-Docket Call Form (available on Judge Cox's website and on the Agreed Case Management Plan and Order) and email it to whiteh@circuit19.org. Cases will be "stacked" during available trial weeks of the e-docket call month according to the year that the case was filed, with the older cases being placed at the top of the week's trial schedule. DOCKET CALL DATES AND POTENTIAL TRIAL WEEKS ARE POSTED ON JUDGE COX'S ONLINE CALENDAR. Counsel for each case is required to submit the E-Docket Call Form for the trial period during which your case is set. All counsel shall discuss and agree regarding trial dates to be selected and one form is to be submitted for each case. The form shall be signed by all the counsel of record for that particular case. If you fail to submit the form as set forth above by the deadline, you will be set on the Trial Schedule at the will of the Court. All forms are to be emailed to whiteh@circuit19.org by 5:00 p.m. three (3) business days before the posted Docket Call date.

- **Other Setting Case for Trial Procedures:**
  CASES NOT REACHED ON THE TRIAL DOCKET: If your case is rolled or continued, existing deadlines stay in place, and you will not be issued a new Trial Order. Do not call the judge's office to determine the status of your case or priority of your case for the trial week. It is unacceptable to announce to the Court that counsel is not ready to proceed to trial because counsel thought another case would proceed instead. If your case is called up for trial and you do not appear or are not ready for trial, the case will be dismissed if you are the plaintiff, or a default entered if you are a defendant. Cases will not be continued by submitting an amended Case Management Plan and Order; a motion (with client consent) and

Agreed Order that includes the new agreed upon e-docket call month/year must be emailed to whiteh@circuit19.org.

SETTLEMENT OF CASES: If your case settles, immediately notify the judicial assistant via email (whiteh@circuit19.org) with all parties copied, ATTACHING AN ALREADY E-FILED NOTICE OF SETTLEMENT, DISMISSAL DOCUMENTS, AND FINAL DISPOSITION FORM. Please note that once a Voluntary Dismissal is filed pursuant to Rule 1.420, the Court loses jurisdiction to enter an Order of Dismissal.

JURORS: The Court generally will allow jurors to take notes and to ask questions where necessary. *See Section 40.50, Florida Statutes.* If any counsel objects to these procedures, such objection should be addressed to the Court prior to the trial.

JURY INSTRUCTIONS: Jury instructions are to be prepared by both sides and exchanged prior to the e-docket call as agreed in the ACMPO. A final draft shall be emailed to whiteh@circuit19.org in Word format by noon (12pm) the Friday prior to jury selection. The final copy should not contain any citation, jury instructions titles, or information as to who requested the instruction. In certain cases, and with the agreement of all counsel, the Court may provide some substantive law instruction to the jury during preliminary instructions and/or before closing arguments.

J. General Magistrate

- Cases will be referred to the General Magistrate pursuant to Administrate 2025-06. All discovery motions should be scheduled with Magistrate Sean Lewis per his procedures: https://www.circuit19.org/judges/magistrate-sean-lewis/

K. Residential Foreclosures

All correspondence and hearing materials for Foreclosure cases (*excepting motions to cancel sale and/or requests to schedule hearings more than 30 minutes)* shall be submitted to the **IRCFORECLOSURES@CIRCUIT19.ORG** in the same manner outlined in the procedures above.

Do not set residential foreclosure matters on any other docket without prior approval from the Court.

MOTION FOR SUMMARY JUDGMENT: When the Motion for Summary Judgment is filed, please also file the ORIGINAL PROMISSORY NOTE AND MORTGAGE with the Clerk of Court, if not already filed. DO NOT SEND THE ORIGINALS TO THE JUDGE'S OFFICE. The Certificate of Title, Disbursement and Final Disposition shall be mailed *directly to the Clerk's office* along with two (2) sets of addressed and stamped envelopes for all parties.

MOTIONS TO CANCEL/RESCHEDULE SALES OR POSTPONE WRIT OF POSSESSION: The timing of a motion to cancel foreclosure sale must comply with Amended AO 17-05. All motions to cancel sale (*which must require the reason for*

cancellation, any supporting documentation and number of times the sale has been cancelled) and a proposed Order in Word format must be emailed to **whiteh@circuit19.org** *at least five (5) business days* before the sale date. A sale may be cancelled ex parte with evidence of permanent modification (or payments made under a temporary modification), short sale, or bankruptcy. Sales that have been cancelled on more than one occasion will not be rescheduled without a hearing *unless good cause is shown*. Failure to publish, pay sale fee, or loss mitigation after Final Judgment are not good cause and will require a hearing accompanied with the consent of acknowledgement of the Plaintiff to reset the sale, along with the appropriate Clerk's fees.

PROPOSED FINAL JUDGMENTS: Please see Third Amended Administrative Order 2017-05 and SC 2022-1275 for the latest form of Final Judgment required by the 19th Circuit. This form is available in the forms area of Judge Cox's webpage at: //www.circuit19.org/judges/cynthia-cox- l

YOU MUST EMAIL THE PROPOSED FINAL JUDGMENT in word format to IRCForeclosures@circuit19.org no later than **ten (10) business days** prior to any hearing. **FAILURE TO TIMELY SUBMIT A PROPOSED FINAL JUDGMENTS IN WORD FORMAT WILL RESULT IN THE HEARING BEING STRICKEN FROM THE DOCKET.**

Please include the following language under the service list of the proposed Final Judgment:

A COPY OF THIS ORDER IS BEING SERVED ON THE FOLLOWING PARTIES VIA THE E-FILING PORTAL (Include parties with email addresses)

COUNSEL FOR (moving party, e.g. Plaintiff, Defendant) SHALL IMMEDIATELY SERVE A COPY OF THIS ORDER ON THE FOLLOWING PARTIES AND FILE A CERTIFICATE OF SERVICE IN THIS COURT FILE: (Include parties with physical addresses).

The Certificate of Title, Disbursement and Final Disposition shall be mailed directly to the Clerk's office along with two (2) sets of addressed and stamped envelopes for all parties.

PRE-HEARING: THE FOLLOWING SHOULD BE IN THE COURT FILE:

- Motion for Summary Judgment and Notice of Hearing/Re-Notice of Hearing
- Verified Complaint (if filed after 2/10)
- All returns of service indicating service of summons on defendants
- Notice of dismissal/dropping party for any defendant served
- Any documents regarding status of any bankruptcy proceeding for any defendant
- Promissory note sued upon (showing any endorsements), with Notice of Filing

- Allonge or recorded assignments, with Notice of Filing
- Affidavit stating plaintiff was the owner and holder of the note at the time of filing and that the servicer has full authority to foreclose (with POA or pooling/servicing agreement)
- Affidavit of indebtedness
- Affidavit regarding attorney's fees by plaintiff's counsel
- Affidavit regarding attorney's fees by supporting expert
- Affidavit of costs
- SCANNED COPY OF ADDING TAPE SHOWING VERIFICATION OF AMOUNTS

ORIGINALS: TO THE CLERK OF COURT

- Promissory note and mortgage
- Proposed Certificate of Disbursements
- Proposed Certificate of Title along with *sufficient addressed stamped envelopes* for the Clerk to send out the Certificate of Disbursements and Certificate of Title

L. Division Forms

- **Access:** Forms are available at https://www.circuit19.org/judges/judge-cynthia-l-cox/

M. Other Division Procedures

- **ADA accommodations:** https://www.circuit19.org/americans-with-disabilities-act-ada/

- **Other Division Procedures:**
  SERVICE OF ORDERS: Executed orders will be served via the e-portal. Please check your designated email address for copies of orders before requesting a status update from the Judge's office.
  PRO-SE (SELF REPRESENTED LITIGANTS): If a pro se party wishes to set a matter for hearing, they should request that the attorney in the case do so. The pro se party should consult with the attorney for a mutually agreeable time. If there is no other attorney on the other side of the case, or if the attorney does not agree that a hearing should be set, the pro se party may contact the judge's office (whiteh@circuit19.org) and request that the Court set the hearing. The judge will evaluate the motion and set for hearing if deemed necessary.